

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: La-Donna Lawrence	Team: Team # 1	CCRB Case #: 200813456	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/16/2008 12:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/16/2010	Precinct: 25		
Date/Time CV Reported Tue, 09/16/2008 1:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/16/2008 1:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Edgar Ciar	07015	923667	025 PCT
2. POM Juan Rodriguez	31417	935623	025 PCT
3. SGT Jorge Rodriguez	02716	918237	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF § 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jorge Rodriguez	Abuse of Authority: Sgt. Jorge Rodriguez authorized the stop of § 87(2)(b)	A . Unsubstantiated
B . POM Edgar Ciar	Force: PO Edgar Ciar used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Jorge Rodriguez	Abuse of Authority: Sgt. Jorge Rodriguez searched § 87(2)(b)	C . Unsubstantiated
D . SGT Jorge Rodriguez	Abuse of Authority: Sgt. Jorge Rodriguez strip-searched § 87(2)(b)	D . Unsubstantiated
E . SGT Jorge Rodriguez	Force: Sgt. Jorge Rodriguez used physical force against § 87(2)(b)	E . Unsubstantiated
F . SGT Jorge Rodriguez	Discourtesy: Sgt. Jorge Rodriguez spoke obscenely and/or rudely to § 87(2)(b)	F . Unsubstantiated
G . SGT Jorge Rodriguez	Abuse of Authority: Sgt. Jorge Rodriguez refused to provide his name and shield number to § 87(2)(b)	G . Unsubstantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
K . SGT Jorge Rodriguez	Other: Sgt. Jorge Rodriguez provided a false official statement in violation of Patrol Guide procedure 211-14.	K . Other Misconduct

Synopsis

On September 16, 2008 at approximately 12:50pm, § 87(2)(b) left his apartment complex located at § 87(2)(b) in Manhattan to buy coffee for his mother. Upon his return, he was a footstep away from entering his apartment complex when he was stopped by PO Edgar Ciar, Sgt. Jorge Rodriguez and PO Juan Rodriguez of the 25th Precinct Street Narcotics Enforcement Unit (*Allegation A*). PO Ciar allegedly grabbed § 87(2)(b) by the back of his shirt (*Allegation B*). Sgt. Rodriguez grabbed § 87(2)(b)'s hands, placed them behind his back and pushed him against the grid metal fencing that surrounded his apartment complex. Sgt. Rodriguez then allegedly placed § 87(2)(b) in handcuffs and began to search him without frisking him prior (*Allegation C*). Sgt. Rodriguez allegedly slid his fingers inside and around § 87(2)(b)'s waistline, held him by his shoulders and turned him around while asking for his identification. § 87(2)(b) told him that he lived in the building that they were in front of, his name was § 87(2)(b) and that he did not have identification on him. Sgt. Rodriguez allegedly went inside § 87(2)(b)'s pockets on his sweatpants and then pulled it down to his knees, exposing his boxers (*Allegation D*). He then allegedly lifted § 87(2)(b)'s shirt and exposed his chest area. Sgt. Rodriguez then allegedly dragged § 87(2)(b)'s boxers upward until it hurt the crevice of his buttocks (*Allegation E*). § 87(2)(b) said, "Why are you embarrassing me?" Sgt. Rodriguez allegedly told him, "Shut the fuck up and let me do my job" (*Allegation F*). Sgt. Rodriguez allegedly felt around his leg and groin area while he asked for § 87(2)(b)'s identification over and over. § 87(2)(b) responded by providing his name and explained that he lived inside the building where they were. PO Rodriguez said, § 87(2)(b) Sgt. Rodriguez allegedly said, "I don't give a shit. He is a wise ass anyways, he knows we can bring him in" (*Allegation F, continued*). Sgt. Rodriguez then released the handcuffs. § 87(2)(b) then asked Sgt. Rodriguez for his shield number. He allegedly told § 87(2)(b) that he could not have it but that he could take the other officers' information (*Allegation G*). § 87(2)(g), § 87(4-b) Sgt. Rodriguez provided a false official statement in his CCRB interview on February 4, 2009 when he claimed that he did not recall this incident and that he did not stop an individual who claimed § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b). For this reason, it is recommended that **Allegations A-G be unsubstantiated.**

§ 87(2)(g), § 87(4-b)

§ 87(2)(b). The investigation also determined that Sgt. Rodriguez provided a false official statement in violation of Patrol Guide procedure 211-14 when he was interviewed at the CCRB on February 4, 2009 and claimed that he did not recall the incident. PO § 87(2)(b) informed the CCRB that Sgt. Rodriguez mentioned this incident to her during a conversation on January 11, 2009, four months after the incident and three weeks before his interview at the CCRB. It is therefore recommended that **other misconduct be noted for allegation K.**

Summary of Complaint

§ 87(2)(b) filed his complaint with the CCRB via phone on September 16, 2008 approximately a half-hour after the incident in question (encl. 7). He was interviewed at the CCRB on October 6, 2008 (encl. 8). § 87(2)(b) is a § 87(2)(b) Hispanic male § 87(2)(b). He provided the following statement:

On September 16, 2008 at approximately 12:50pm, § 87(2)(b) left his apartment complex located at § 87(2)(b) in Manhattan to buy coffee for his mother. § 87(2)(b) was wearing royal blue sweat pants, neon green, blue and white sneakers, a white t-shirt and a blue Kansas City cap. He noted that his hands were empty and that he had his house keys and a few dollars to buy the coffee in his pockets. En route to buy coffee at the § 87(2)(b) located on § 87(2)(b) and § 87(2)(b) § 87(2)(b) said that the only time he interacted with anyone was when he verbally greeted a security guard right outside his apartment complex.

There were passersby in the area, but no one lingered by the entrance of the complex. § 87(2)(b) headed directly to the store and made no additional stops. It took less than five minutes for § 87(2)(b) to purchase the coffee.

As § 87(2)(b) was a footstep away from entering his apartment complex, an Asian male officer, later identified as PO Edgar Ciar, grabbed § 87(2)(b) by the back of his shirt.¹ PO Ciar had a fade haircut and was approximately 5'9". Meanwhile, a male Hispanic officer with a bald head and full beard² who was less than 5'9", grabbed § 87(2)(b)'s hands, placed them behind his back and pushed him against the grid metal fencing that surrounded his apartment complex. The investigation identified this officer as Sgt. Jorge Rodriguez. PO Ciar released his grasp of § 87(2)(b)'s shirt once Sgt. Rodriguez made physical contact with him. Sgt. Rodriguez then placed § 87(2)(b) in handcuffs and began to search him without frisking him prior. Sgt. Rodriguez slid his fingers inside and around § 87(2)(b)'s waistline, held him by his shoulders and turned him around. Sgt. Rodriguez asked for his identification. § 87(2)(b) told him that he lived in the building that they were in front of, his name was § 87(2)(b) and that he did not have identification on him. Sgt. Rodriguez went inside the pockets of § 87(2)(b)'s sweatpants and then pulled them down to his knees, exposing his boxers. He then lifted § 87(2)(b)'s shirt and exposed his chest area. Sgt. Rodriguez dragged § 87(2)(b)'s boxers upward until it hurt the crevice of his buttocks. § 87(2)(b) said, "Why are you embarrassing me?" Sgt. Rodriguez responded, "Shut the fuck up and let me do my job." Sgt. Rodriguez felt around his leg and groin area while he asked for § 87(2)(b)'s identification over and over. § 87(2)(b) again provided his name and explained that he lived inside the building where they were, and said, "I answered the same question fifteen times man!" A third officer, who was identified through the investigation as PO Jorge Rodriguez, was present and wrote down § 87(2)(b)'s information on a pad. PO Rodriguez, described as a slender Hispanic male of average height with black hair and a fade haircut who had written down § 87(2)(b)'s name and address, began to say, § 87(2)(b). § 87(2)(b) Sgt. Rodriguez said, "I don't give a shit. He is a fucking wise ass anyways, he knows we can bring him in" and released the handcuffs.

§ 87(2)(b) then asked Sgt. Rodriguez for his shield number. He told § 87(2)(b) that he could not have it but that he could take the other officers' information. The other officers flashed their badges quickly and § 87(2)(b) was unable to record their identifying information. The officers then left in a yellow taxi cab.³ They never provided any explanation for the stop nor was he issued any summonses. He noted that he never used profane language towards them nor did he show any resistance to the stop or search.

Results of Investigation

Canvass

On November 3, 2008, the undersigned investigator went to the incident location to search for witnesses. No witnesses were found.

Photo Array

The undersigned investigator prepared a photo array to present to § 87(2)(b). On November 5, 2008, the undersigned investigator called § 87(2)(b) and left him a voice message. On this same date, he was sent a please call to view photo array letter. On November 12, 2008, the undersigned investigator called § 87(2)(b) and left him a voice message. On this same date, he was sent a final please call to view photo array letter. On November 19, 2008, the undersigned investigator called § 87(2)(b) and his phone was disconnected and has been to date.

¹ § 87(2)(b) did not mention this detail during his phone statement on September 16, 2008.

² In his intake statement he stated that this officer had "full sideburns."

³ In his initial intake statement, § 87(2)(b) identified the yellow taxi's number as § 87(2)(b). He also stated that one officer had a badge number that included 216 and another officer's badge number included the numbers 2704.

Officer Statements

Sgt. Jorge Rodriguez

Sgt. Jorge Rodriguez, a § 87(2)(b) bald male Hispanic, was interviewed at the CCRB on February 4, 2009 at 10:14am (encl. 12). § 87(2)(b) At the time of the incident, Sgt. Rodriguez wore plainclothes and worked with PO Edgar Ciar for a tour from 8:00am to 4:00pm. Both officers were assigned to the SNEU. He did not recall what type of vehicle to which he was assigned. He did not have any memo book entries pertaining to this incident (encl. 11). He provided the following statement:

Sgt. Rodriguez was unable to recall this incident. There were no entries in his memo book regarding this incident and the closest entry to the time of the incident indicates that they were returning to the precinct stationhouse. After Sgt. Rodriguez was given a synopsis of the incident, as well as a physical description of § 87(2)(b) he responded, "That does not ring a bell. We stop a lot of people in that area, I could not tell you." When informed that the complainant alleged that he was stopped by officers in a taxi cab, Sgt. Rodriguez responded that his team normally uses this vehicle, though he was not sure if they did on September 16, 2008. Sgt. Rodriguez was also asked if he stopped an individual that § 87(2)(b) He responded, "No."

PO Edgar Ciar

PO Edgar Ciar, a § 87(2)(b) male Asian, was interviewed at the CCRB on January 13, 2009 at 9:30am (encl. 14). § 87(2)(b) At the time of the incident, PO Ciar was on duty and wore plainclothes. He was assigned to SNEU and worked with Sgt. Jorge Rodriguez. He worked from 8:00am to 4:45pm tour and was assigned to a yellow taxi. PO Ciar did not have any memo book entries pertaining to this incident (encl. 13). He provided the following statement.

PO Ciar had no recollection of the incident. After PO Ciar was given a synopsis of the incident, he was unable to recall the incident.

PO Juan Rodriguez

PO Juan Rodriguez, a § 87(2)(b) male Hispanic, was interviewed at the CCRB on February 3, 2009 at 11:05am (encl. 12). § 87(2)(b) At the time of the incident, PO Rodriguez was on duty and worked with Sgt. Jorge Rodriguez and PO Edgar Ciar. A yellow cab was their assigned vehicle. He did not have any memo book entries pertaining to this incident, nor did he have any entries within two hours of the incident (encl. 11). PO Rodriguez provided the following statement.

PO Rodriguez was unable to recall the incident. After being given a synopsis of the incident, PO Rodriguez was still unable to recount the incident. He did not recall being at the incident location on the incident date.

PO § 87(2)(b) § 87(2)(b)

PO § 87(2)(b) § 87(2)(b) a § 87(2)(b) female Hispanic, was interviewed at the CCRB on June 8 and 22 in 2009 (encl. 16). § 87(2)(b) PO § 87(2)(b) was not present for the incident § 87(2)(b) She provided the following statement.

§ 87(2)(b)

PO § 87(2)(b) testified that on January 11, 2009, which was her first day back § 87(2)(b) Sgt. Jorge Rodriguez told her that his team had an incident with § 87(2)(b). She maintained that she did not ask any questions about the incident nor did Sgt. Rodriguez provide any more information. PO § 87(2)(b) said that she never spoke to § 87(2)(b) regarding the incident or any other officers.

Police Documents

The 25th Precinct roll call indicates that PO Ciar, PO Rodriguez and Sgt. Rodriguez were on duty and assigned to the Street Narcotics Enforcement Unit (encl. 18). The Stop, Question and Frisk index indicates that no Stop and Frisk Report was prepared regarding this incident (encl. 17).

This is § 87(2)(b)'s only CCRB complaint (encl. 6). During PO Ciar's four year tenure with the CCRB, he has never had a substantiated CCRB allegation (encl. 4). During Sgt. Rodriguez's twelve year tenure with the NYPD, he has not had any substantiated CCRB allegation (encl. 3).

Officer Identification

§ 87(2)(g) (b)

§ 87(2)(g), § 87(4-b) § 87(2)(g)

2)

It is undisputed that PO Ciar, PO Rodriguez and Sgt. Rodriguez were on duty at the time of the incident, wore plain clothes and operated from a yellow taxi cab.

§ 87(2)(g)

§ 87(2)(b) alleged that three officers emerged from a yellow taxi cab and stopped, used physical force, and searched and strip-searched him, and that Sgt. Rodriguez failed to provide his name and shield number. All the officers interviewed claimed to have no recollection of the incident and do not have any entries in their memo books to place them near the incident location at the incident time. § 87(2)(g)

[illegible]

